

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/25/2026

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties email or call the department rendering the decision to request argument and to specify the issues to be argued. Calling counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of their decision to appear and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (*Local Rule 3.43(2).*)

Note: In order to minimize the risk of miscommunication, parties are to provide an **EMAIL NOTIFICATION TO THE DEPARTMENT OF THE REQUEST TO ARGUE AND SPECIFICATION OF ISSUES TO BE ARGUED**. Dept. 10's email address is: dept10@contracosta.courts.ca.gov. Warning: this email address is not to be used for any communication with the department except as expressly and specifically authorized by the court. Any emails received in contravention of this order will be disregarded by the court and may subject the offending party to sanctions.

Submission of Orders After Hearing in Department 10 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Courtroom Clerk's Calendar

1.	9:00 AM	CASE NUMBER:	C23-02411	CASE NAME: MATTHEW KUYKENDALL VS. BRENDA TINER
				SETTLEMENT CONFERENCE
				FILED BY:
				<u>*TENTATIVE RULING:*</u>

Parties and counsel to appear for settlement conference. See also Line 4.

2.	9:00 AM	CASE NUMBER:	C25-01410	CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
				*FURTHER CASE MANAGEMENT CONFERENCE
				FILED BY:
				<u>*TENTATIVE RULING:*</u>

See Line 10 below. Defendant's counsel may attend the CMC by Zoom.

3. 8:59 AM CASE NUMBER: C25-02588
CASE NAME: COOL BEANS ENTERTAINMENT LLC, VS. CHRISTINE SORIANO
*EX PARTE REQUEST FOR TEMPORARY RESTRAINING ORDER AND ORDER TO SHOW CAUSE RE:
PRELIMINARY INJUNCTION
FILED BY:
TENTATIVE RULING:

Counsel to appear (in person or by Zoom).

This is a preliminary injunction motion centering on control and operation of several residential care facilities for elders. The Court will be prepared to rule on the motion as an adversary matter, if that is necessary (although a little more time to master the extensive evidence presented would be useful). In the meantime, however, it appears to the Court that there is, or should be, a basis for the parties to agree on an interim solution that protects both sides' interests while they proceed to litigate the corporate-control issues in the case. The Court is calling the attorneys in for a hearing on the noticed date to explore what may be feasible in that regard, and on what time line.

At base this is a corporate-control dispute. The present preliminary injunction motion, however, does not (at least on its face) center on direct issues of corporate ownership and control. Instead, the focus of the motion is on plaintiffs' contention that there are various forms of emergency in the facilities as to resident care and financial solvency. In particular, Plaintiff contends that care and management staffing are drastically insufficient, and that the facilities are unable to pay vendors and payroll sufficiently for proper operation of the facilities. Defendants deny these factual assertions, contending that the management and fiscal situations are well in hand and that plaintiffs' cries of alarm are factually false and manufactured for litigation effect. Defendants also contend that DSS is already properly on top of the situation and can be counted on to take any steps necessary for urgent concerns of resident care and fiscal solvency.

The Court intends to pass over (for now) the underlying disputes about corporate control, which aren't really implicated on the specific relief sought or resisted on this motion. Instead, it will focus not on those issues (such as what did or didn't happen in a board meeting last year), but on what is to be done with running these facilities while the litigation is going on.

What has caught the Court's attention, and has led directly to this intermediate order, is the point that **both sides are proposing the same structural solution** – namely, the hiring of professional third-party management companies to run the facilities (and their immediate finances) pending litigation. Thus, despite all the factual disagreements and bitter rhetoric, the choice before the Court isn't *whether* to arrange a third-party administrator, but only *which one*, and on what terms of independent operation. The Court, in tomorrow's hearing, proposes to take both sides at their earnest words in this respect, and explore how they may be able to agree on a compromise interim solution along exactly these lines.

Specifically, Plaintiff identifies the relief sought on page 2 of their application:

Plaintiff seeks interim equitable relief appointing a neutral third-party administrator and the immediate execution of management agreements to assume control over day-to-day operations, ordinary course financial transactions, staffing, and regulatory

compliance at the Senior Living Facilities (Legacy Oaks, Balance Assisted Living, and Living Grace); removing Defendant Shelly Cha from operations and all authority over financial decision-making and access to business bank accounts and financial systems at the Senior Living Facilities; requiring implementation of third-party Medi-Cal billing and lender-approved financial oversight at the Senior Living Facilities; and preserving and turning over all financial records for independent review.

The particular third-party administrator proposed by plaintiffs is Seasons Living. It also proposes hiring a service for Medicare billing.

Defendants agree on hiring a third-party administrator; they just have a different candidate in mind (Opposition at 4-5):

In any event, the relief that Plaintiff requests is now effectively moot. On May 15, 2026, the members of the Subject LLCs held a special meeting to discuss and potentially vote upon the appointment of an independent neutral third-party management company to oversee and administer the day-to-day operations of the Company. (Cha Decl., ¶ 20.) The members discussed and considered multiple potential third party management companies, including Seasons Living, Paradigm Senior Living Management Camino Care, and Kalesta Healthcare Group. (Id. ¶ 21). On May 16, 2026, the members of the Subject LLCs voted to approve Kalesta Healthcare Group to take over as the management company for all the Senior Living Facilities. (Id. ¶ 27, and Exhibit 3). The Subject LLCs are negotiating a formal management contract agreement with Kalesta Healthcare Group, and anticipate bringing that company on board. (Id. ¶ 30). party management company is precisely what Plaintiff seeks, and, therefore, Kalesta Healthcare Group's approval is sufficient reason alone to deny the Application as moot.

(The Court notes that, formally speaking, it is not in a position to order that Kalesta be hired, as there is no motion before the Court seeking that relief. Defendants propose to proceed with Kalestra, however, as a ground for denying plaintiffs' motion to order hiring Seasons Living (or perhaps as a condition on such denial). Moreover, absent a contrary preliminary injunction, defendants don't require a court order to make that happen.)

So, notwithstanding the extremely bitter debate and acrimonious accusations thrown back and forth in these briefs, we apparently have agreement on the solution of hiring a third-party administrator – either Seasons Living or Kalesta. Moreover, although each side takes some minor and peripheral potshots at the other side's candidate, neither side presents any really convincing or compelling argument as to why the Court should reject either candidate or choose one administrator over the other. It is not difficult to infer that the only real problem in the choice of administrator is that each side doesn't want the other side's candidate.

The Court proposes to take advantage of this structural agreement on a third-party administrator, by directing the parties to meet and confer about how to make that happen. The Court will be inquiring what particular objections each side may have to engaging the other side's candidate. If (as the Court infers) the only real problem is that each side fears the other side will retain too much control over the reins of management, however, that is something that can surely be worked out in compromise, by

building in sufficient operational independence from partisan hands-on control. Or, alternatively, the parties may need to turn to a third candidate.

The Court understands that it is unrealistically optimistic to suppose that the parties can work out every detail of an interim compromise between 1:30 Wednesday afternoon and 9:00 Thursday morning. However, the Court intends to set the parties on that path of discussion, and to inquire as to how long it may take. A further hearing date for the pending motion can be set accordingly.

The Court also takes the opportunity to observe that there are at least two other sets of interested parties involved in this overall dispute that may well have some interests to be protected – and in any event may well have critically useful, neutral input for the Court’s guidance. Namely, those are the DSS, and the lenders. The Court extends an invitation for them, if they see fit, to involve themselves directly in this litigation, by formal intervention if appropriate, or at least by friend-of-the-court input.

4. 9:00 AM CASE NUMBER: MSN15-2146

CASE NAME: KUYKENDALL VS TINER

SETTLEMENT CONFERENCE

FILED BY:

TENTATIVE RULING:

Parties and counsel to appear for settlement conference. See also Line 1.

5. 9:00 AM CASE NUMBER: C23-02855

CASE NAME: YVONNE THOMPSON VS. SAFEAMERICA CREDIT UNION

***HEARING ON MOTION IN RE: COMPLIANCE HEARING**

FILED BY:

TENTATIVE RULING:

The report of disbursements is **approved**. The administrator may proceed with the remaining disbursements.

6. 9:00 AM CASE NUMBER: C23-02941

CASE NAME: ABRAHAM GOLZARY VS. ANASTASIA MARTINEZ

***HEARING ON MOTION FOR DISCOVERY DEEM ADMISSIONS ADMITTED, SET ONE AS TO DEFENDANT JOSE LUIS HUERTA**

FILED BY: GOLZARY, ABRAHAM

TENTATIVE RULING:

Judgment has been entered in this case.

7. 9:00 AM CASE NUMBER: C24-00481

CASE NAME: STEVE STROOT VS. NATHAN SIMARRO

HEARING ON SUMMARY MOTION ADJUDICATION PUNITIVE DAMAGES

FILED BY:

TENTATIVE RULING:

Before the Court is the motion of Defendant Nathan Simarro for summary adjudication of Plaintiffs' claim for punitive damages. The motion is opposed by Steve Stroot, Alison Stroot, and Steve Stroot as guardian *ad litem* for minors Logan Stroot and Gwendolyn Stroot.

Defendant moves for summary adjudication on the grounds that there are no material allegations of fact sufficient to support a finding of fraud, oppression, or malice as required to support a claim of punitive damages under Civil Code section 3294.

Plaintiffs oppose this motion on the grounds that evidence raises triable issues of material fact precluding summary adjudication.

For the following reasons, Defendant's motion for summary adjudication is **DENIED**. In summary: There is no evidence here suggesting that Defendant acted intentionally or under actual ill will, nor that he was under the influence or the like. However, there is significant evidence casting doubt on his own account of how the accident occurred. Plaintiffs overstate the available legal grounds for punitive damages. However, the case law establishes that in circumstances like this case, punitive damages do not necessarily require such aggravating factors as driving under the influence, let alone any actual, conscious intentionality or ill will. However, conscious disregard of safety can suffice. Whether unintentional conduct, causing an accident like this one, can rise to the level of malice required for punitive damages is a question that, on the evidence here, cannot be determined by summary judgment, but must be left to trial.

I. Evidentiary Matters

The Court need only rule on those objections to evidence that were material to the disposition of the motion for summary adjudication. (Code Civ. Proc., § 437c.)

Objection No. 1 (traffic collision report – hearsay): **SUSTAINED**

Objection No. 2 (traffic collision report – foundation): **SUSTAINED**

Objection No. 3 (apology note – hearsay): The Court declines to rule on this objection. The evidence is not material to the disposition of this motion. (Code Civ. Proc., § 437c(q).)

II. Factual Allegations

The Stroots own a single-family home at 1900 Susan Lane, in Pleasant Hill. (Compl. at 4.) Susan Lane is a residential street intersected by Doris Drive, which is a business street. (*Ibid.*) Doris Drive and Susan Lane meet in a T-intersection that is controlled by a single stop sign with a limit line and "STOP" clearly painted on the street with no obstructions. (*Ibid.*) 1900 Susan Lane sits at the end of that T-intersection, and its driveway sits opposite the intersection's stop sign. (*Ibid.*)

The Stroots allege that they were at home on January 5, 2024, at 6:30 p.m., when they allege that Defendant Simarro ran the stop sign at Susan Lane and Doris Drive and drove his 2023 Rivian R1T truck into their home "at an extreme rate of speed." (Compl. at 4-5.) Plaintiffs allege the collision "completely destroy[ed] the garage, cars that were parked there, and destroy[ed] valuable possessions of the family." (Compl. at 4.) The collision also severed an active gas line and created a gas leak in the home. (*Ibid.*)

The investigating officer summarized Simarro's statement at the scene as follows:

[Simarro] was driving westbound on Doris Drive when he approached the T

intersection of Doris Drive and Susan Lane. [Simarro] came to a complete stop at the stop sign. When he lifted his foot off the brake, it slipped behind the brake causing him to press harder onto the gas, which accelerated him across the intersection at a high rate of speed. [Due] to his foot being stuck behind the brake he was unable to stop the vehicle until it was too late and he rear ended [one of the two vehicles] located in the driveway, pushing it into the garage.

(Compl. at 4.)

Simarro, in his declaration, states that he was driving on Doris Drive toward Susan Lane at a rate of speed between 25 and 35 miles per hour on the night of the collision. (Simarro Dec. ¶ 4.) He states that:

Somehow, my foot accidentally got stuck on the accelerator of the Rivian near Plaintiffs' home which caused me to accelerate to approximately 45 miles per hour. Due to my foot being stuck on the accelerator, I was unable to slow my vehicle prior to entering the intersection and ended up crashing into Plaintiff's vehicle and ultimately into Plaintiffs' home.

(Simarro Dec. ¶¶ 5-6.)

In response to form interrogatory 17.1, Simarro stated that he “attempted to stop at the stop sign, but his foot became stuck.” (Def. Exhibits, Exhibit 2 at Interrogatory No. 17.1.)

Plaintiffs allege that video of the collision captured by a Tesla in the area and collected as evidence by the investigating officer, shows that, contrary to Simarro’s statement to the investigating officer that he made a complete stop at the intersection, Simarro did not stop at the stop sign at Susan Lane and Doris Drive. (Compl. at 5; PLN Exhibits, Exhibit 5 ¶ 9.)

The investigating officer cited Simarro with a violation of California Vehicle Code section 22450(a) for failing to stop at the stop sign. (Compl. at 4; Veh. Code, § 22450.)

Paul Jacobs, who is an expert in forensic imaging and analysis hired by Plaintiffs, opines based on his analysis of the Tesla video that Simarro’s vehicle did not stop or even slow down at the stop sign. (PLN Exhibits, Exhibit 5 ¶¶ 1, 22-23, 29.) Mr. Jacobs opines that there is no indication that the brake lights turned on or off at any point in the video and “[b]ased upon the constant velocity and lack of negative acceleration, it appears that the brakes were not activated prior to the crash.” (*Id.* at ¶¶ 27-28.) The Court’s own examination of the video supports this analysis.

III. Summary Adjudication Legal Standard

A party may move for summary adjudication as to one or more claims for damages if the party contends that there is no merit to a claim for damages, as specified in Section 3294 of the Civil Code. (Code Civ. Proc., § 437c(f)(1).) A motion for summary adjudication shall be granted only if it completely disposes of the claim for damages. (*Ibid.*) A motion for summary adjudication shall proceed in all procedural respects as a motion for summary judgment. (Code Civ. Proc., § 437c(f)(2).)

To succeed on a motion for summary adjudication, a defendant must conclusively negate a necessary element of the plaintiff's case and demonstrate that under no hypothesis embodied in the complaint is there a material issue of fact that requires the process of a trial. (*Molko v. Holy Spirit Assn.* (1988) 46 Cal.3d 1092, 1107; *Kelleher v. Empresa Hondurena de Vapores, S.A.* (1976) 57 Cal.App.3d 52, 58.)

“[T]he party moving for [summary adjudication] bears the burden of persuasion that there is no

triable issue of material fact and that he is entitled to judgment as a matter of law.” (*Aguilar v. Atlantic Richfield Co.* (2001) 25 Cal.4th 826, 850.) “When the defendant moves for [summary adjudication] and makes a *prima facie* showing that one or more elements of the plaintiffs’ cause of action cannot be established, the burden shifts to the plaintiff to make a *prima facie* showing that the element in question can be established.” (*Avivi v. Centro Medico Urgente Medical Center* (2008) 159 Cal.App.4th 463, 467.)

There exists a triable issue of material fact if the evidence, viewed in the light most favorable to the opposing party, is such that a reasonable trier of fact could find the underlying fact in favor of the opposing party by the applicable standard of proof. (*Aguilar*, 25 Cal.4th at 850, *Reader’s Digest Assn. v. Superior Court* (1984) 37 Cal.3d 244, 252.) “When deciding whether to grant [summary adjudication], the court must consider all of the evidence set forth in the papers (except evidence to which the court has sustained an objection), as well as all reasonable inferences that may be drawn from that evidence, in the light most favorable to the party opposing summary judgment.” (*Avivi*, 159 Cal.App.4th at 467.) “A court generally cannot resolve questions about a declarant’s credibility in a summary judgment proceeding.” (*AARTS Productions, Inc. v. Crocker National Bank* (1986) 179 Cal.App.3d 1061, 1065.)

IV. Budra Declaration

As a preliminary matter, the Court addresses the Declaration of Michael K. Budra submitted in support of Defendant’s motion. Budra declares that Plaintiffs, “did not include any facts alleging” intent to injure or conduct constituting fraud, oppression, or malice. (Budra Dec. ¶¶ 3-6.) These statements are not factual assertions within the declarant’s personal knowledge but rather legal conclusions about the sufficiency of Plaintiffs’ evidence. Whether the record contains evidence sufficient to create a triable issue of material fact as to malice, oppression, or fraud under Civil Code section 3294 is a determination for the Court on this motion. The Budra declaration’s conclusions on that question are not evidence and are not given weight in the Court’s analysis. The Court’s determination of the sufficiency of the Plaintiffs’ evidence is based on its independent review of the entire record.

V. Analysis

A plaintiff may recover punitive damages in an action for the breach of an obligation not arising out of contract where it is proven by clear and convincing evidence that the defendant has been guilty of malice, oppression, or fraud. (*Angie M. v. Superior Court* (1995) 37 Cal.App.4th 1217, 1227; (Civ. Code, § 3294(a).) Subdivision (c) of that section provides:

As used in this section, the following definitions shall apply:

(1) “Malice” means conduct which is intended by the defendant to cause injury to the plaintiff or despicable conduct which is carried on by the defendant with a willful and conscious disregard of the rights or safety of others.

(2) “Oppression” means despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights.

(3) “Fraud” means an intentional misrepresentation, deceit, or concealment of a material fact known to the defendant with the intention on the part of the defendant of thereby depriving a person of property or legal rights or otherwise causing injury.

An allegation that an intentional tort was committed is not sufficient to warrant an award of punitive

damages. (*Grieves v. Superior Court* (1984) 157 Cal.App.3d 159, 166.) “There must be an intent to vex, annoy or injure. Mere spite or ill will is not sufficient; and mere negligence, even gross negligence is not sufficient to justify an award of punitive damages.” (*Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, 894 (emphasis in original).)

“Malice” required by California Civil Code § 3294 implies acts taken in the spirit of mischief or with criminal indifference. (*Taylor v. Superior Court of Los Angeles County* (1979) 24 Cal.3d 890, 894 (citations omitted).) To establish malice, a plaintiff must demonstrate that the defendant was “aware of the probable dangerous consequences of his conduct, and that he willfully and deliberately failed to avoid those consequences.” (*Id.* at 895-896.) “[A] conscious disregard of the safety of others may constitute malice within the meaning of section 3294 of the Civil Code.” (*Ibid.*) “We suggest *conscious disregard of safety* as an appropriate description of the *animus malus* which may justify an exemplary damage award when nondeliberate injury is alleged.” (*G. D. Searle & Co. v. Superior Court* (1975) 49 Cal.App.3d 22, 32 (emphasis in original).)

A. Defendant Meets His Initial Burden.

A defendant moving for summary adjudication may meet its initial burden by showing that the plaintiff cannot establish one or more elements of the challenged claim. (*Aguilar*, 25 Cal.4th at 851; *McGonnell v. Kaiser Gypsum Co.* (2002) 98 Cal.App.4th 1098, 1103-1104.)

Here, Defendant meets his initial burden. Simarro, in his declaration and response to interrogatories, states that he was traveling between 25 and 35 miles per hour on Doris Drive when his foot got stuck on the accelerator of his Rivian causing the vehicle to accelerate to approximately 45 miles per hour going into the intersection at Susan Lane. (Simarro Dec. ¶¶ 4-5; Def. Exhibits, Exhibit 1 at Interrogatory No. 20.8.) Because his foot was stuck on the accelerator, he states he was unable to slow the vehicle going into the intersection, causing his vehicle to collide with the Stroots’ home. (Simarro Dec. ¶ 6.)

This showing is sufficient to establish a *prima facie* case that Plaintiffs cannot prove malice, oppression, or fraud under Civil Code section 3294. The burden therefore shifts to Plaintiffs to demonstrate a triable issue of material fact. (*Avivi*, 159 Cal.App.4th at 467.)

B. Plaintiffs Raise a Triable Issue of Material Fact as to Malice.

Simarro’s account of the collision has two components: that he attempted to stop at the stop sign, and that his foot accidentally became stuck on the accelerator, causing him to accelerate into the intersection and ultimately into the Stroots’ home. (Def. Exhibits, Exhibit 2 at Interrogatory No. 17.1; Simarro Dec. ¶¶ 4-5.) Critically, Simarro does not merely claim his foot became stuck, he specifically states that this caused him to accelerate from between 25 and 35 miles per hour, up to approximately 45 miles per hour, prior to entering the intersection. (Simarro Dec. ¶¶ 4-5.)

Plaintiffs submit the declaration of Paul Jacobs, an expert in forensic imaging and video analysis, who conducted a frame-by-frame analysis of Tesla dashcam video of the collision captured from a vehicle traveling southbound on Susan Lane toward the intersection collected as evidence by police. (PLN Exhibits, Exhibit 5 ¶¶ 1-2, 15.) Mr. Jacobs opines that Simarro’s vehicle was in constant motion between the first frame in which it appears and the frame in which it first contacts a vehicle in the Stroots’ driveway, and that there are no objective signs of acceleration. (*Id.* ¶¶ 22-24.) He states that the video shows the vehicle has a constant velocity throughout, although he did not offer an opinion as to the approximate speed of the vehicle. (*Id.* ¶ 22-25.) Mr. Jacobs further opines that there is no indication at any point in the video that the brake lights changed condition, and, based on the

constant velocity and lack of negative acceleration, the brakes were not activated prior to the crash. (*Id.* ¶¶ 27-28.) The Jacobs declaration directly contradicts Simarro's claim in his declaration that his foot became stuck on the accelerator and caused the Rivian to accelerate from 25-35 miles per hour up to approximately 45 miles per hour. (*Id.* ¶ 24.) The un rebutted forensic evidence shows no such acceleration occurred. (*Ibid.*)

The Jacobs declaration creates a conflict in the evidence that cannot be resolved at the summary adjudication stage. Simarro states that his foot became stuck on the accelerator and caused the Rivian to accelerate from 25-35 miles per hour to approximately 45 miles per hour. Mr. Jacobs' forensic analysis of the same event shows constant velocity and no objective signs of acceleration. Those two accounts cannot both be true, and the question of which to credit is one for the trier of fact. (*AARTS Productions, Inc.*, 179 Cal.App.3d at 1065.)

If the trier of fact credits the Jacobs declaration over Simarro's account, the remaining record presents the following: a sober, unimpaired driver operating a Rivian pickup truck drove through a clearly marked, unobstructed residential stop sign at a T-intersection – where a home sat directly across from the stop sign – without braking at all, and then lied to the investigating officer about having stopped at the stop sign afterward. (Compl. at 4-5; PLN Exhibits, Exhibit 5 ¶¶ 27-29; Simarro Dec. ¶ 6.) Nothing in the record otherwise explains why Simarro did not stop or slow down. There is no evidence of a mechanical defect in Simarro's vehicle. (Def. Exhibits, Exhibit 1 at Interrogatory Nos. 20.09, 20.10.) There is nothing in the record to indicate that Simarro was under the influence of drugs or alcohol or was otherwise impaired at the time of the collision.

In *Dawes v. Superior Court* (1980) 111 Cal.App.3d 82, the Court of Appeal considered whether the conduct of an intoxicated driver who ran a stop sign and caused a fatal collision could support a finding of malice under Civil Code section 3294. The plaintiffs in *Dawes* alleged not only that the defendant drove while intoxicated, but that he ran a stop sign, zig-zagged in and out of traffic at speeds in excess of 65 miles per hour in a 35-mile-per-hour zone near a crowded recreation area on a Sunday afternoon, and that immediately after the collision, the defendant and his passenger falsely reported to police that the passenger, not the defendant, had been driving. (*Dawes*, 111 Cal.App.3d at 89-90.) The court there held that those specific factual allegations, taken together, were sufficient to support a malice finding if proved at trial. (*Id.* at 89.)

The court in *Dawes* quoted with approval the following from a law review article written by Justice Franson:

'[Allegations] of intoxication, excessive speed, driving with defective equipment or the running of a stop signal, without more, do not state a cause of action for punitive damages.

On the other hand, if the facts show that the defendant intentionally drove his vehicle at a high speed into an intersection crowded with pedestrians, or if he drove at a high speed through a crowded residential area where children were playing in the street, a legitimate inference of actual malice perhaps could arise. *This would be particularly true if the defendant had not been drinking, or, if drinking, he was not under the influence to the point where he was incapable of being aware of the situation confronting him.* Under these circumstances, it reasonably might be said that the defendant acted in such an outrageous and reprehensible manner that the jury could infer that he knowingly disregarded the substantial certainty of injury to

others.’

(*Dawes*, 111 Cal.App.3d at 90, quoting Franson, *Exemplary Damages in Vehicle Accident Cases* (1975) 50 State Bar J. 144, 148, fn. omitted) (emphasis added).)

The facts here are not identical to *Dawes*; there is no evidence that the intersection was crowded or that children were present on the street. But the Franson passage quoted with approval in *Dawes* is illustrative, not exhaustive. The court did not hold that a conscious disregard inference is available only where those precise circumstances exist. Rather, *Dawes* stands for the broader proposition that a stop sign violation, combined with additional specific facts beyond the violation itself, can support a malice finding – particularly where the driver was sober and unimpaired. A trier of fact could reasonably find by clear and convincing evidence that that combination of additional specific facts is present here.

Nothing in the record establishes that Simarro was intoxicated at the time of the collision, placing this case squarely within the sober-driver scenario the *Dawes* court identified as particularly susceptible to a conscious disregard inference. Beyond sobriety, the record shows a driver who passed through a clearly marked, unobstructed residential stop sign without braking, whose claimed explanation for the collision is directly contradicted by un rebutted forensic evidence, and who, further, gave a false account of the collision to the investigating officer – a specific post-incident fact that the *Dawes* court identified itself as supporting a malice inference. (*Dawes*, 111 Cal.App.3d at 89.)

Moreover, the geometry of this particular intersection made the risk of harm not merely foreseeable but virtually certain given that 1900 Susan Lane sits directly across from the stop sign, such that any vehicle passing through without stopping or turning was on a direct path into the structure.

Viewed in the light most favorable to the non-moving party, a reasonable trier of fact could find by clear and convincing evidence that Simarro acted with conscious disregard of the rights and safety of others within the meaning of “malice” under Civil Code section 3294(c)(1). (*Aguilar*, 25 Cal.4th at 850; *Avivi*, 159 Cal.App.4th at 467; *G. D. Searle & Co.*, 49 Cal.App.3d at 32; *Taylor*, 24 Cal.3d at 895-896.)

C. Plaintiffs Raise a Triable Issue of Material Fact as to Oppression.

Oppression under Civil Code section 3294(c)(2) requires despicable conduct that subjects a person to cruel and unjust hardship in conscious disregard of that person’s rights. As discussed *ante*, the record presents a triable issue as to whether Simarro’s conduct was despicable and carried out with conscious disregard of the rights and safety of others. The same evidence that creates a triable issue under malice likewise creates a triable issue under oppression.

The record also contains substantial evidence of cruel and unjust hardship. Plaintiffs’ responses to special interrogatories detail, among other things, forced displacement from their home for an extended period, multiple relocations through temporary housing, aggravation of Mrs. Stroot’s pre-existing hip injury, aggravation of Mr. Stroot’s pre-existing PTSD with documented symptoms including chronic insomnia, and significant uninsured financial losses including out-of-pocket expenses, veterinary bills, and costs associated with multiple moves. (Def. Exhibits, Exhibits 3 and 4.)

A reasonable trier of fact could find by clear and convincing evidence that Plaintiffs were subjected to cruel and unjust hardship in conscious disregard of their rights within the meaning of Civil Code section 3294(c)(2).

D. Plaintiffs Do Not Raise a Triable Issue of Material Fact as to Fraud.

Plaintiffs present no triable issue as to fraud under Civil Code section 3294(c)(3). Fraud requires an intentional misrepresentation, deceit, or concealment of a material fact made with the intention of thereby depriving a person of property or legal rights, or otherwise causing injury. The allegedly false account Simarro gave to the investigating officer about stopping at the stop sign does not meet this definition. That statement was made after the collision had already occurred and therefore cannot have been made with the intent to cause the collision or the resulting property damage. Nor is there any evidence in the record that the false statement was made with the intent to deprive Plaintiffs of any legal rights. The false account is relevant to the malice analysis, as discussed *ante*, but it does not independently support a finding of fraud under Civil Code section 3294(c)(3).

E. Gross Negligence is Not the Standard for Punitive Damages.

Plaintiffs' opposition devotes considerable attention to the doctrine of gross negligence. (See generally MPA in OPPOSITION to Def MSJ.) Gross negligence, however, is not the operative standard for a punitive damages claim under Civil Code section 3294. Gross negligence has been defined as either an "extreme departure from the ordinary standard of conduct" or a "want of even scant care." (*Eastburn v. Regional Fire Protection Authority* (2003) 31 Cal.4th 1175, 1185-1186.) While gross negligence may exceed ordinary negligence in degree, it remains a negligence standard and does not require the willful and conscious disregard of the rights and safety of others that Civil Code section 3294 demands. As the court stated in *Ebaugh v. Rabkin* (1972) 22 Cal.App.3d 891, "...mere negligence, even gross negligence is not sufficient to justify an award of punitive damages." (*Ebaugh*, 22 Cal.App.3d at 894 (emphasis in original).)

The Court's denial of this motion is based on the triable issues of material fact as to malice and oppression under Civil Code section 3294, not on Plaintiffs' gross negligence analysis.

F. Conclusion

Defendant's motion for summary adjudication is **DENIED**. The declaration of Paul Jacobs creates a triable issue of material fact as to whether Simarro's conduct constituted despicable conduct carried out with willful and conscious disregard of the rights and safety of others within the meaning of malice under Civil Code section 3294(c)(1), and oppression under Civil Code section 3294(c)(2).

8. 9:00 AM CASE NUMBER: C24-03556

CASE NAME: KILROY REALTY 303, LLC VS. LEROY QUAN

*HEARING ON MOTION IN RE: TO FILE RECORDS UNDER SEAL

FILED BY: QUAN, LEROY M.

*TENTATIVE RULING:

Defendant's motion for leave to file financial information under seal is unopposed and it is **granted**.

9. 9:00 AM CASE NUMBER: C25-00060

CASE NAME: MARIO ZITO VS. GRETCHEN LACAYO-CODUS

*HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO FORM AND SPECIAL INTERROGATORIES

FILED BY: ZITO, MARIO ANTHONY

TENTATIVE RULING:

Plaintiff moves to compel responses to his first round of routine written discovery (form and special interrogatories, document requests, and requests for admission). No responses at all have been served. Defendant is represented by counsel, but no opposition or response to this motion has been filed. (This motion should probably have been calendared in Department 57.)

The motion is **granted**. Specifically:

1. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Form Interrogatories, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026.
2. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Special Interrogatories, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026.
3. Defendant Gretchen Locayo-Codus is ordered to respond to plaintiff's First Set of Requests for Production, served on or about September 19, 2025, with complete and sworn responses and without objections. Verified responses must be served by July 16, 2026. All responsive documents must be produced by July 30.
4. All matters in plaintiff's First Set of Requests for Admission, served on or about September 19, 2025, will be deemed admitted, unless defendant Locayo-Codus serves verified responses thereto, without objections, by 5:00 p.m. on June 24, 2026.

Sanctions are awarded in the amount of \$2,100, payable within 30 days by defendant or defendant's attorney to counsel for plaintiff.

10. 9:00 AM CASE NUMBER: C25-01410
CASE NAME: LUIS BARRERA VS. OSVALDO GARCIA
***HEARING ON MOTION IN RE: TO BE RELIEVED AS COUNSEL**
FILED BY: BARRERA, LUIS RIVERA
TENTATIVE RULING:

Counsel to appear in person for in camera hearing as to grounds for withdrawal. The client may appear also if desired.

11. 9:00 AM CASE NUMBER: C25-03445
CASE NAME: LAKEVIEW LOAN SERVICING, LLC VS. VANITA KHANNA
***HEARING ON MOTION IN RE: STAY PROCEEDINGS PENDING LOSS MITIGATION**
FILED BY: LAKEVIEW LOAN SERVICING, LLC
TENTATIVE RULING:

This is a judicial foreclosure action, in which the defendants have not been formally served yet. Plaintiff lender moves to stay proceedings pending loss mitigation efforts. The motion is unopposed, and it is **granted**. The Court salutes plaintiff and its counsel for this practical and reasonable approach to the litigation.

A case management conference (for status check) is set for December 4, 2026, at 8:30 a.m. All intervening dates are vacated. Plaintiff may seek to resume litigation in the meantime if need be.

12. 9:00 AM CASE NUMBER: C25-03530

CASE NAME: JOHN RUBIO VS. SUSANNE KIM

HEARING ON DEMURRER TO: COMPLAINT ADVANCED 4/1/2026 PER ORAL STIPULATION AND REQUEST.

FILED BY: KIM, SUSANNE SARECKI

TENTATIVE RULING:

Before the Court is a demurrer filed by defendants Mount Diablo Unified School District and Susanne Starecki Kim, that challenges all 14 of the causes of action alleged in the complaint of plaintiff John Rubio. Defendants argue that none of the claims asserted in the Complaint states sufficient facts to constitute causes of action.

For the reasons set forth below, the hearing on the Demurrer is continued until **Thursday, July 30, 2026, at 9:00 a.m., in Department 10**. The parties shall meet and confer **by July 9, 2026**, and Defendants shall file the required “meet and confer” declaration showing compliance with Code of Civil Procedure section 430.41(a), **by July 16, 2026**. The Court expects that by July 16, 2026, the parties will either: (1) take the demurrer off calendar due to an amended complaint being filed; (2) report impasse on all issues; or (3) report they have resolved some issues but ask for a ruling on the rest.

Code of Civil Procedure section 430.41(a) requires the party intending to file a demurrer to meet and confer with the party whose pleading is being challenged “**in person, by telephone, or by video conference**” prior to filing the demurrer. In addition to this, a party may satisfy this requirement when the party who filed the pleading subject to the motion “failed to respond to the meet and confer request of the moving party....” (*Ibid.*) The moving party must then file a declaration with the demurrer attesting to the party’s compliance with the meet and confer requirement. (*Ibid.*) Courts have wide discretion to continue hearings to order further meet and confer efforts to take place. (*Dumas v. Los Angeles County Bd. of Supervisors* (2020) 45 Cal.App.5th 348, 355, fn. 3 [“Of course, trial courts are not required to ignore defects in the meet and confer process. If, upon review of a declaration under section 430.41, subdivision (a)(3), a court learns no meet and confer has taken place, or concludes further conferences between counsel would likely be productive, it retains discretion to order counsel to meaningfully discuss the pleadings with an eye toward reducing the number of issues or eliminating the need for a demurrer, and to continue the hearing date to facilitate that effort.”].)

The David R. Mishook Declaration does not state the parties met and conferred in the manner required by the Code of Civil Procedure. (Mishook Decl., ¶¶ 2-3.) Maribel S. Medina’s declaration confirms it. (Medina Decl., ¶ 7 [“Prior to filing the demurrer, Defendants did not attempt to meet and confer with me (or with Plaintiff) in person, by telephone, or by video conference, and Defendants did not attempt to schedule such a conference.”].) Moreover, it is apparent on the face of the demurrer that it is very much of a character that would very likely have benefited from a fruitful meet-and-confer process. That’s exactly what the statute calls for – and exactly what wasn’t done here.

The hearing is therefore continued for the parties to meet and confer pursuant to the statute.

13. 9:00 AM CASE NUMBER: C25-03770

CASE NAME: SHIELA WILEY VS. KAISER FOUNDATION HEALTH PLAN INC.

***MOTION/PETITION TO COMPEL ARBITRATION PETITION TO VACATE CONTRACTUAL
ARBITRATION AWARD**

FILED BY: WILEY, SHIELA

TENTATIVE RULING:

Before the Court is Petitioner Sheila Wiley's Petition to Vacate Arbitration Award. The Petition is **denied**.

Factual and Procedural Background

The Petition was filed on December 11, 2025. It moves to vacate the underlying arbitration award on three grounds: (1) the misconduct of the arbitrator substantially prejudiced petitioner's rights; (2) the arbitrator exceeded his or her authority, and the award cannot be fairly corrected; and (3) the arbitrator unfairly refused to postpone the hearing or to hear evidence useful to settle the dispute. The Petition attaches "Order No. 5" (the order Petitioner disputes), and attachment 10c2 (an outline of the 'facts supporting the grounds for vacating the award.')

The Kaiser Respondents filed a "Response to Petitioner Wiley's Petition to Vacate Arbitration Award and Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. §1285" on January 13, 2026. On January 23, 2026, Petitioner filed her "Response to Respondent's Request to Dismiss Petition for Failure to Comply with Code Civ. Proc. § 1285," which included five separate parts totaling 156 pages. Thereafter, on January 30, 2026, the Kaiser Respondents then filed "Respondent's Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," along with a declaration of counsel in support. On February 6, 2026, Petitioner then filed her "Reply to Respondents' Memorandum in Opposition to Claimant's Petition to Vacate Arbitration Award," which consisted of four parts totaling 136 pages. The Kaiser Respondents then filed, on February 17, 2026, "Respondents' Objections to Claimant's Reply Memorandum and Evidence." Not to be outdone, Petitioner then filed, on February 20, 2026, "Claimant's Reply to Respondents' Objections to Claimant's Reply Memorandum and Evidence."

Procedural Problems with Papers

"An application for an order is a motion." (Code Civ. Proc. § 1003.) As the Petition seeks an order, it is considered a 'motion.' A 'motion' consists of a notice of hearing, the motion itself, and a memorandum in support. (Cal. R. Ct. 3.1112(a).) "Other papers may be filed in support of a motion, including declarations, exhibits, appendices, and other documents or pleadings." (Cal. R. Ct. 3.1112(b).)

The only papers accepted related to a motion are the initial motion, an opposition, and a reply (along with supporting documents for each). (Code Civ. Proc. § 1005(b).) There is no provision in the Code of Civil Procedure, generally, for the filing of a 'sur-reply' (no matter how titled), nor for a second opposition and reply. The decision whether to consider a sur-reply is within the discretion of the trial court. (*Guimei v. General Electric Co.* (2009) 172 Cal.App.4th 689, 704.)

The Court is unclear why the Kaiser Respondents filed two separate ‘oppositions’ (one titled ‘response’ and one titled ‘opposition’) to the Petition.

As for Petitioner’s filings, breaking the filings into multiple parts, without any kind of index or description of the documents included in each part, substantially increased the Court’s work in trying to identify what documents were submitted and where they could be located. In addition, “electronic exhibits **must include** electronic bookmarks with links to the first page of each exhibit and with bookmark titles that identify the exhibit number or letter and briefly describe the exhibit.” (Cal. R. Ct. 3.1110(f)(4) emphasis added.) Petition did not abide by this Rule. Petitioner’s submissions instead include numerous exhibits without any index or bookmarks identifying what they are.

The lack of a declaration identifying the documents only added to the confusion since “[e]vidence received at a law and motion hearing **must be by declaration** or request for judicial notice without testimony or cross-examination, unless the court orders otherwise for good cause shown.” (Cal. R. Ct. 3.1306 (a), emphasis added.) Petitioner does not include any declarations or requests for judicial notice – thereby failing to include any admissible evidence. (See evidentiary objections below.)

“Matters set forth in points and authorities are not evidence.” (*Alki Partners, LP v. DB Fund Services, LLC* (2016) 4 Cal.App.5th 574, 590.) “Evidence appears elsewhere – in deposition testimony, discovery responses, and declarations.” (*Ibid.*) “The allegations of a brief are not evidence and a brief is not a sworn document.” (*In re Marriage of Duris & Urbany* (2011) 193 Cal.App.4th 510, 515.)

The original or copies of all evidence that will be presented to the court at the motion hearing must be served along with the notice of motion and memorandum of points and authorities. (Code Civ. Proc. § 1005(b); *David S. Karton, a Law Corp. v. Musick, Peeler & Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048.) The “general rule of motion practice ... is that new evidence is not permitted with reply papers.” (*Jay v. Mahaffey* (2013) 218 Cal.App.4th 1522, 1537.) “[T]he inclusion of additional evidentiary matter with the reply should only be allowed in the exceptional case ...’ and if permitted, the other party should be given the opportunity to respond.” (*Id.* at 1537-38, citations omitted.)

As the Kaiser Respondents point out, Petitioner failed to include any evidence with her Petition. As noted above, even when she attempted to submit evidence in support of her Reply papers, she failed to include any declarations identifying or authenticating any of the documents. Before a ‘writing’ can be received in evidence it must be authenticated. (Evid. Code § 1401(a).) “To authenticate a writing, its proponent must introduce evidence sufficient to sustain a finding that it is the writing that the proponent of the evidence claims it is.” (*O’Laskey v. Sortino* (1990) 224 Cal.App.3d 241, 249, quoting Evid. Code § 1400.)

With the above overview in mind, the Court will wade into the issues raised by the parties.

Legal Standard

“California has a well-established policy favoring arbitration as a speedy and inexpensive means of settling disputes.” (*A.M. Classic Construction, Inc. v. Tri-Build Development Co.* (1999) 70 Cal.App.4th 1470, 1474.) “To support this policy and encourage parties to settle their disputes through arbitration, it is essential that arbitration judgments be both binding and final. Thus, as a general rule, courts will indulge every reasonable intendment to give effect to arbitration proceedings. To ensure that an arbitrator’s decision is the end of the dispute, arbitration awards are subject to very narrow judicial review.” (*Ibid.*) “Unless a statutory basis for vacating or correcting an award exists, a reviewing

court ‘shall confirm the award as made....’” (*Maaso v. Signer* (2012) 203 Cal.App.4th 362, 378.)

“Code of Civil Procedure section 1286.2 sets forth the exclusive grounds for vacating an arbitration award.” (*Maaso*, 203 Cal.App.4th at 371.) “Except on these grounds, arbitration awards are immune from judicial review in proceedings to confirm or challenge the award.” (*Ibid.* quoting *A.M. Classic Construction, Inc v. Tri-Build Development Co.* (1999) 70 Cal.App.4th 1470, 1475.)

Analysis

Arbitration Order Being Challenged

Initially, it appears that the Order being challenged by Petitioner is not reviewable by the Court. Code of Civil Procedure section 1285 allows any party to an arbitration in which an award has been made to “petition the court to confirm, correct or vacate **the award**.” An arbitration “award” must be in writing and “shall include a determination of all the questions submitted to the arbitrators the decision of which is necessary in order to determine the controversy.” (Code Civ. Proc. § 1283.4.)

Before confirming or vacating an award, the “trial court has a duty, in order to follow the dictates of section 1283.4, to ensure that the arbitrator’s ‘award’ is an ‘award’ within the meaning of the statute.” (*Cinel v. Christopher* (2012) 203 Cal.App.4th 759, 767.)

The Petition notes that the “award” provides for summary judgment and is attached to the Petition. The document attached to the Petition is Order No. 5 (neutral waiver), dated November 3, 2025. That Order is not an “award” as defined above, as it does not determine the controversy. It also does not rule on a summary judgment motion as indicated by Petitioner. Instead, it is an interim order wherein the arbitrator determined that Kaiser would be allowed to withdraw its waiver of consent to proceed with a single arbitrator. The arbitrator determined that each party would be able to appoint their own Party Arbitrator – and confirming that Kaiser had selected George Clause, Esq.

The Order also notes that Ms. Wiley would be allowed to pick her Party Arbitrator of choice – including, possibly a non-attorney such as her pastor. The arbitrator requested additional briefing on this issue. The Order also indicates that Kaiser’s request for reconsideration of its earlier filed summary judgment motion was granted “based upon the intervening deposition of claimant’s expert witness.”

The actual “award” is the Order on Respondent’s Motion for Reconsideration (“Award”) related to the Kaiser Respondent’s Motion for Summary Judgment. There are two versions of the Award – one dated November 26, 2025, and one dated November 30, 2025. Both versions are exactly the same but for the date. Petitioner attempts to argue that the “mere fact that there are two separate Orders should be enough to nullify this proceeding and require a new Arbitration.” (Reply at 8:5-6.) Petitioner opines as to why there are two versions but provides no credible evidence for her suppositions. Also, given that they are substantively the same, her arguments fail.

As noted by the Kaiser Respondents, the Petition fails to attach a copy of the “award” being challenged. Accordingly, it fails to comply with Code of Civil Procedure section 1285.4(c). Not only does the Petition fail to include the “award” sought to be vacated, Petitioner makes clear that she is “not arguing the award.” (Reply at 9:20.) In fact, in her Petition Mrs. Wiley specifically states “Claimant is not arguing the merits of this case here.” Instead, she is taking issue with an interim ruling by the arbitrator.

Petitioner fails to cite any authority wherein the Court can vacate an interim order of an arbitrator.

“Courts have repeatedly instructed litigants that challenges to the arbitrator’s rulings on discovery, admission of evidence, reasoning, and conduct of the proceedings do not lie.” (*Evans v. Centerstone Development Co.* (2005) 134 Cal.App.4th 151, 167.) A “challenge to an arbitrator’s evidentiary rulings or limitations on discovery should not provide a basis for vacating an award unless the error *substantially prejudiced* a party’s ability to present *material* evidence in support of its case.” (*Schlessinger v. Rosenfeld, Meyer Susman* (1995) 40 Cal.App.4th 1096, 1110 italics in original.)

Under Code of Civil Procedure sections 1285 and 1286.2, upon which the Petition is based, the Court can only vacate an “award” under certain circumstances. Petitioner’s failure to challenge the “award” in this case is fatal to her position.

Order No. 5

Even if the Court could review the interim order Petitioner takes issue with, Petitioner was not harmed by the ruling as it was shortly thereafter overruled. The gist of Petitioner’s complaint relates to the Kaiser Respondent’s late election to withdraw their waiver of the right to a Party Arbitrator which was allowed by Order No. 5.

Under the applicable rules, if a Demand for Arbitration seeks total damages of more than \$200,000 the “dispute may be heard and determined by one Neutral Arbitrator and two Party Arbitrators,” one appointed by each party. (Kaiser Response Ex. C – Rule 14.) The parties can, however, waive their right to a Party Arbitrator and, if both parties so waive their rights, the arbitration will proceed with a single Neutral Arbitrator. (*Ibid.*)

If the Demand for Arbitration seeks total damages of \$200,000 or less, “the dispute shall be heard and determined by one Neutral Arbitrator,” unless the Parties agree in writing that it should proceed with two Party Arbitrators and a Neutral Arbitrator. (*Ibid.*)

Mrs. Wiley filed her demand for arbitration on June 19, 2024. (Zhurnalova-Juppunov Decl. Ex. 1.) The demand did not include an amount of damages sought. (*Ibid.*) Under the rules, Party Arbitrators were used in arbitrations seeking more than \$200,000 – which this matter appeared to be. As noted by the Kaiser Respondents, Petitioner’s discovery responses showed she was seeking over \$1 million. (Zhurnalova-Juppunov Decl. Ex. 2.) Also, the Waiver of Party Arbitrator – Claimant form submitted by Petitioner states that “Party Arbitrators are used in arbitrations seeking more than \$200,000,” but that parties may waive the use of Party Arbitrators. (Petitioner Response Ex. E.)

Both parties submitted waivers. As such, the arbitration was to proceed with a single neutral arbitrator. On August 19, 2024, the Office of Independent Administrator, which administered the arbitration, selected Janice Sperow as the neutral arbitrator. (Zhurnalova-Juppunov Decl. ¶ 5.)

After the Kaiser Respondents initial Motion for Summary Judgment was denied by Arbitrator Sperow, they sought to withdraw their waiver and to have a Party Arbitrator appointed. Initially, in Order No. 5, the arbitrator granted the Kaiser Respondent’s request and appointed George Clause, Esq. as their Party Arbitrator. The Order noted that Petitioner would be allowed to pick a Party Arbitrator of her choice, including a non-attorney of her choosing, such as her pastor. (The arbitrator requested additional briefing on this issue.)

A week after the issuance of Order No. 5, Petitioner filed her Motion to Reconsider that decision.

(Zhurnalova-Juppunov Decl. Ex. 8.) In that Motion, she confirmed that her claim “is for \$200,000,” and as such there is no “automatic right for the Respondent to unilaterally assert the right for a Party Arbitrator.” (*Ibid.*) Accordingly, she requested that the earlier ruling allowing the Kaiser Respondents to “rescind its party arbitrator waiver be reversed” and that the matter proceed with a single arbitrator. (*Ibid.*)

On November 26, 2025, the arbitrator issued its order **granting** Claimant’s Motion for Reconsideration, and confirming the “arbitration shall proceed before a single neutral arbitrator.” (Zhurnalova-Juppunov Decl. Ex. 9.)

Thus, Order No. 5, which Petitioner is claiming is the basis of her Petition, was essentially overruled by the subsequent order on Petitioner’s motion for reconsideration. As such, it is unclear what the basis of Petitioner’s claims are related to the alleged impropriety of Order No. 5. That Order never took effect and the Kaiser Respondent’s were never allowed to use their Party Arbitrator. Instead, the arbitration continued with the single neutral arbitrator appointed by the OIC – which is what Petitioner sought. Consequently, there was no prejudice to Petitioner due to Order No. 5.

Evidentiary Objections

Kaiser’s objections to statements in Reply:

1-4: Overruled.

Kaiser’s objections to new exhibits:

1-4: Sustained.

Conclusion

In summary: Petitioner goes out of her way to state that she is *not* challenging the arbitration ruling on its substantive merits. It is no easy task to ascertain what exactly she *is* challenging, but it appears to be only the temporary ruling that there would be multiple arbitrators – a ruling that was then changed back to a single arbitrator at petitioner’s own demand. The case was in fact ruled on by a single arbitrator, the exact procedure that petitioner says should have been used. At most there might be some gripe about her being required to forgo damages in excess of \$200,000 in order to get back to a single arbitrator. But not only is that exactly what the rules require, but it is also manifestly “no harm, no foul”. Since petitioner in fact lost this arbitration by a summary judgment of no liability – a result she does not challenge here – it cannot have mattered how large her damages demand was.

Based on the above, the Petition to Vacate the Arbitration Award is **denied**.

14. 9:00 AM CASE NUMBER: MSC20-00628

CASE NAME: RISOFTEDEV VS CHATFIELD

***HEARING ON MOTION IN RE: DISCOVERY SANCTIONS AGAINST CHRISTOPHER L. MARTINEZ**

FILED BY: RISOFTEDEV INC

TENTATIVE RULING:

Plaintiffs filed this motion in March, for terminating sanctions against defendant Christopher Martinez for failure to produce documents in discovery as previously ordered. The motion was filed in good faith at the time, but it is **dropped from calendar** in light of very recent developments.

In this corporate-opportunity case, Martinez was originally represented by the same attorney as other defendants. The others shifted to different counsel, leaving Martinez alone represented by the prior attorney. That attorney was allowed to withdraw in January 2025 due to lack of contact and payment.

Martinez and his adult son now inform the Court that Martinez was suffering from serious medical issues in the interim. As of June 11, 2026, he is now represented by the same attorney as the other defendants (Webb). Webb has substituted in, provided a formal response to the outstanding RFP, and produced responsive documents.

The Court sympathizes with both plaintiffs' frustration at lack of timely discovery, and Martinez's unfortunate medical circumstances. Fortunately, it now appears that the problems of Martinez effectively dropping out of the case have solved themselves with Webb's appearance for Martinez and belated discovery responses.

As discussed at the CMC this Wednesday morning, the Court expects the parties – all of the parties – to meet to discuss all open issues of discovery or other exchange of information; they may want to involve a neutral if necessary before resorting to formal discovery motions. If there remain rulings needed from the Court on discovery issues, it may be appropriate to expedite the hearings in light of the trial date. At present, however, there are no such motions on the Court's calendar and the Court will be disappointed if it turns out to be necessary to rule on on discovery issues.

15. 9:00 AM CASE NUMBER: MSC20-00933
CASE NAME: WILLIAMS V. FARTHING
***HEARING ON MOTION IN RE: SET ASIDE DEFAULT JUDGMENT**
FILED BY: FARTHING, DAVID
TENTATIVE RULING:

Default judgment was entered in this case in December 2024. Defendant Farthing, a Texas resident, filed this motion to set aside the default. (He filed the motion pro per, though counsel for him has subbed in.)

There is no proof in the Court's file that this motion was ever served on the other side. The Court notes that counsel for the plaintiff/judgment creditor has recently subbed out, with Ms. Williams now being pro per, which may perhaps suggest that the plaintiff's side is familiar with the motion – but that is far from certain and is not documented in the file. Plaintiff has filed no response to the motion.

The motion to set aside is therefore taken **off calendar**, for lack of confirmed service on the plaintiff. The motion is **continued** to August 27, 2026, at 9:00 a.m. The moving defendant must file proof by July 10 that he has served his motion on plaintiff. (Service should be by mail at the address on plaintiff's recent substitution of counsel form.)

It is suggested that defendant (directly or through his attorney) should promptly get in informal touch with plaintiff to discuss whether the matter can be settled, or if not, at least whether the parties can agree to vacate the default and litigate the case on its merits.

16. 9:00 AM CASE NUMBER: N26-0509

CASE NAME:

***HEARING ON MINOR'S COMPROMISE**

FILED BY:

TENTATIVE RULING:

The proposed minor's compromise is **approved**.

17. 9:00 AM CASE NUMBER: N26-0717

CASE NAME: ANTHONY BETTENCOURT VS. THE DEPARTMENT OF MOTOR VEHICLES

HEARING IN RE: WRIT OF MANDATE - DMV

FILED BY:

TENTATIVE RULING:

This is a petition for a writ of administrative mandate, challenging suspension of the petitioner's special driver certificate. The petition was served on DMV, but no administrative record has been filed, and DMV has not filed any response. The petition is therefore **continued** to August 27, 2026, at 9:00 a.m. so that an administrative record can be provided (and DMV may respond if it so desires). In the event that the record is still not available by (say) mid-August, the parties are encouraged to contact the Court for a further rescheduling.

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 10
JUDICIAL OFFICER: CHARLES S TREAT
HEARING DATE: 06/25/2026